

26SMCV00342 26SMCV00342

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-09-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C511%2C09%2F14%2F2026

Source SHA-256: 02bb1f7f00af8643f4cb25565ac22e9e0d80a8e52e144d727000283330cbc484

Case Number: 26SMCV00342 Hearing Date: September 14, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September

14, 2026

CASE NAME: Morning

Star, LLC v. Keith B. Canter, et al.

CASE NO.: 26SMCV00342

DEMURRER

TO CROSS-COMPLAINT

MOVING PARTY: Cross-Defendant

Patrick Farshad Nazemi

RESPONDING PARTY(S): Defendant/Cross-Complainant

Keith B. Canter, Trustee of the Canter Schoen Family Trust u/t/d March 17,

2015

REQUESTED RELIEF:

1. Demurrer

to the entire cross-complaint as uncertain as to whether Nazemi is being sued
in his individual capacity or as trustee of the Nevada Reliable Trust;

2. Demurrer

to the first and second causes of action for failing to state sufficient facts to constitute a cause of action.

TENTATIVE RULING:

1. Demurrers

to the cross-complaint are OVERRULED;

2. Nazemi

to file his answer within 14 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On January 26, 2026, Plaintiff Morning Star, LLC (Plaintiff) filed a Complaint against

Defendants Keith B. Canter and Karen Elise Schoen, Trustees of The Canter Schoen Family

Trust U/T/D March 17, 2015. The caption alleging two causes of action. First, Breaches

Declarations of Covenants, Conditions and Restrictions for Sea Star Estates and, second, for

Breach of Restrictive Covenants. The body of the complaint, however, alleges three causes of

Action: First, Breaches Declarations of Covenants, Conditions and Restrictions for Sea Star

Estates (relating to construction of improvements to existing Canter home); Second, Breaches

Declarations of Covenants, Conditions and Restrictions for Sea Star Estates (relating to original

construction); and, Third, Breach of Restrictive

Covenants.

;

On March 2, 2026, Plaintiff filed a motion for preliminary injunction that relates only to the first cause of action which the court DENIED without prejudice.

;

On March 27, 2026, Defendant/Cross-Complainant Keith B. Canter, Trustee of the Canter Schoen Family Trust u/t/d March 17, 2015 (Cross-Complainant) filed a cross-complaint against Cross-Defendants Morning Star, LLC and Patrick Farshad Nazemi, Trustee of the Nevada Reliable Trust (Cross-Defendants) with two causes of action for: (1) violation of the California Coastal Act; and (2) nuisance. According to the cross-complaint, Cross-Defendants maintain a tall ficus hedge and multiple palm trees on the Morning Star property that violate the landscaping restrictions in the Coastal Development Permit and unlawfully block ocean views from Cross-Complainant's adjacent property. He further alleges that Nazemi intentionally planted and continues to maintain this non-native vegetation without required approvals, creating fire hazards, root intrusion, shade impacts, and substantial daily Coastal Act violations. Additionally, Cross-Complainant claims Nazemi placed surveillance cameras aimed at his home to harass and intimidate him, causing emotional distress, privacy violations, and property-value diminution.

On April 28, 2026, Morning Star, LLC filed a demurrer to the cross-complaint which the court OVERRULED. As of September 8, 2026, Morning Star has not filed an answer to the cross-complaint.

On June 25, 2026, Nazemi filed the instant demurrer to the cross-complaint. On September 2, 2026, Cross-Complainant filed an untimely opposition. Replies were due on or before September 4, 2026. On September 8, 2026, Nazemi filed a reply.

LEGAL STANDARD:

Meet and Confer;

¿

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civ. Proc. §430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. §430.41(a)(2) & (3). ¿The meet and confer requirement also applies to motions to strike. (CCP § 435.5.)¿

Here, the parties met and conferred via telephone on June 18, 2026. (Declaration of Patrick Nazemi ¶ 2.) This requirement is therefore met.

Demurrer –
Sufficiency of Facts¿

¿

A demurrer for sufficiency tests whether the complaint states a cause of action.¿(Hahn v. Mirada¿(2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context.¿In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice.¿(Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)¿“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.”¿(Hahn¿147 Cal.App.4th at 747.)¿¿¿

¿¿

When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to the complaint and incorporated by reference. (See Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94.)¿¿

Demurrer
– Uncertainty

CCP § 430.10(f) provides that a party may demurrer to a pleading because: "The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible."

However, "demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Chen v. Berenjian (2019) 33 Cal.App.5th 811, 822.) "A demurrer for uncertainty should be overruled when the facts as to which the complaint is uncertain are presumptively within the defendant's knowledge." (Ibid.)

ANALYSIS:

Request for
Judicial Notice

The court DENIES Nazemi's request for judicial notice as superfluous to this ruling.

Uncertainty

Nazemi contends the cross-complaint is fatally uncertain because it is not clear in what capacity he is being sued – individually or as trustee of The Nevada Reliable Trust.

Cross-Complainant argues this is a distinction without a difference since they alleged Nazemi is the alter ego of Morning Star.[1]

Nazemi replies that the court should not consider the late reply and that it is critical to specify whether he is sued individually or as trustee of the Nevada Reliable Trust to determine what assets would be liable on a judgment. He adds that the boilerplate alter ego allegations are defective.

After reviewing the cross-complaint, it is not uncertain. Notably, reading the cross-complaint in whole and in context, it is clear that

Cross-Complainant seeks relief against Nazemi, individually, rather than as against the Nevada Reliable Trust. (See *Galdjie v. Darwish* (2003) 113 Cal.App.4th 1331, 1344-1345 [discussing common law context for a trustee's liability for actions taken in the administration of their duties as trustee.]) To start, Cross-Complainant alleges that Nazemi is an alter ego of Morning Star, an LLC whose sole member is Nazemi as trustee as the Nevada Reliable Trust. (Cross-Compl. ¶¶ 2, 3, 7.) Next, Nazemi resides at the Morning Star property. (Cross-Compl. ¶¶ 9.) Nazemi allegedly maintains the palm and ficus trees on Morning Star's property, planted those trees, and installed video cameras to face Cross-Complainant's property. (Cross-Compl. ¶¶ 11, 19, 21, 25, 26, 27.) Indeed, Cross-Complainant alleges that Nazemi "on his own behalf and on behalf of Morning Star" violated Cross-Complainant's privacy rights and property rights. (Cross-Compl. ¶¶ 26, 27.) It is therefore clear, and not uncertain, that these claims are against Nazemi individually.

Accordingly, the court OVERRULES the demurrer for uncertainty.

First Cause of

Action: Violation of the California Coastal Act

Nazemi contends this claim fails because the cross-complaint alleges that he had approval from the City of Malibu to plant the ficus trees.

Cross-Complainant incorporates by reference their arguments to Morning Star's prior demurrer.

Nazemi replies that since he is not the alleged owner, he is not liable for violations under the Act and reiterates that the allegations show he subsequently obtained approval for the planting.

"Any person who violates any provision of this division may be civilly liable" (Pub. Res. Code § 30820(a).) "Civil liability may be imposed by the superior court in accordance with this article on any person who performs or undertakes development that is in violation of this division or that is inconsistent with any coastal development permit previously issued by the commission," (Id. at subd. (a)(1).)

After reviewing the cross-complaint, Cross-Complainant sufficiently stated a claim for violation of the California Coastal Act, in

theory. First, Cross-Complainant alleges a violation of Coastal Development Permit No. 4-97-252, Special Condition No. 1. (Cross-Compl. ¶¶ 13, 14, 16, 17.) Reading the allegations in full and in context, Cross-Complainant alleges that planting/maintaining the palm and ficus trees violate the prohibition on invasive, non-indigenous plant species articulated in Special Condition No. 1. (Cross-Compl. ¶ 14.) Whether this is true is outside the scope of this motion.

Additionally, the court rejects Nazemi's argument that the claim is moot due to obtaining approval. The Cross-Complaint alleges that Nazemi sought "after-the-fact approval" which "was conditionally approved on January 24, 2023" but seeks penalties from the time it was noncompliant until it was compliant. (Cross-Compl. ¶ 19.) Put differently, Nazemi underquotes the allegations.

Finally, the court rejects Nazemi's argument that he, as the non-owner, escapes liability at this stage. The Cross-Complaint alleges that the Act applies to "any person who performs or undertakes development that is in violation of this division" (Cross-Compl. ¶ 18.)

Accordingly, the court OVERRULES Nazemi's demurrer to the first cause of action.

Second Cause of
Action: Nuisance

Nazemi contends this claim fails because alleged blocked views, risk of wildfires, and tree roots without allegations of damage, and installation of security cameras on his own property cannot support the claim.

Cross-Complainant incorporates by reference their arguments to Morning Star's prior demurrer.

Nazemi replies that since he is not the alleged owner, this claim fails. He adds that the security camera installation is insufficient as a matter of law to constitute a nuisance.

The elements for a private nuisance claim are: (1) interference with plaintiff's use and enjoyment of plaintiff's property; (2)

invasion of plaintiff's use and enjoyment involves substantial actual damage;
and (3) interference is unreasonable as to the nature, duration or amount. (Today's IV v. Los Angeles County
Metropolitan Transportation Authority (2022) 83 Cal.App.5th 1137, 1176.)

Here, Cross-Complainant sufficiently stated a private
nuisance claim against Nazemi. Critically, Nazemi allegedly caused a nuisance
by installing video cameras on his property that surveil the Canter property.
(Cross-Compl. ¶ 25.) The cameras allegedly face "three sides of the Canter
property" and observe "all activity on the Canter property, including inside
the interior of the residence." (Ibid.)

Indeed, Cross-Complainant alleges that Nazemi stated he "has observed Canter
taking a shower in his bathroom." (Ibid.)

This is sufficient for the pleadings stage. (See Shoen v. Zacarias (2019) 33 Cal.App.5th 1112, 1124-1125 [remaining
nuisance claim concerning video cameras aimed at portions of property belonging
to one party].) With this in mind, the court declines to address the alleged
nuisance caused by the hedge.

Accordingly, the court **OVERRULES** Nazemi's demurrer to the
second cause of action.

CONCLUSION:

For
the foregoing reasons, the Court decides the pending motion as follows:

1. Demurrers

to the cross-complaint are **OVERRULED**;

2. Nazemi

to file his answer within 14 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 14, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

Cross-Complainant cites no authority in support of this position.